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Act No. 72 (H.480). An act relating to miscellaneous amendments to education law

Subjects: Education; school safety; postsecondary schools; virtual learning; BOCES; flexible pathways; Secretary of Education; State Board of Education; literacy; National Guard Tuition Benefit Program; cardiac emergency response plans; school libraries; therapeutic approved independent schools; cell-phones; social media; career and technical education

This act makes several miscellaneous changes to Vermont education laws. It makes amendments to the effective dates of portions of 2023 Acts and Resolves No. 29, 2023's school safety act, and amends the list of postsecondary schools that are accredited and approved to operate in Vermont to reflect schools that no longer operate in Vermont or have updated their name. It amends the cost thresholds at which school districts are required to seek public bids, codifies the requirement for the Agency of Education (AOE) to maintain access to and oversight of a virtual learning provider, and allows supervisory unions that are exploring formation of a Board of Cooperative Education Services (BOCES) to apply for and receive a start-up grant rather than waiting until after a BOCES is already formed to be eligible for the grant. This act requires schools, when providing students with postsecondary planning resources, to include resources and information regarding the admissions process and requirements necessary to proceed with any and all military-related opportunities. It further requires the Governor to send a letter to the Chair of the State Board of Education (SBE) asking the Board to initiate the candidate selection process for a new Secretary of Education not later than 30 days after public notification of a vacancy or anticipated vacancy and for the SBE to begin a national search not later than 60 days after receipt of a letter from the Governor.

This act also amends the title of 16 V.S.A. § 2903 from "preventing early school failure; reading instruction" to "foundation for literacy" and requires schools to provide supplemental reading instruction to any enrolled student in grades kindergarten through 12 whose reading proficiency falls significantly below proficiency standards for the student's grade level or whose reading proficiency prevents progress in school. It expands the Vermont National Guard Tuition Benefit Program to allow eligible members to receive more than one undergraduate certificate, undergraduate degree, graduate degree, or other credential recognized by VSAC under the Program, provided that the cost of all certificates, degrees, and credentials received by the individual under the Program does not exceed an amount equal to twice the full-time in-state tuition rate charged by UVM for completion of an undergraduate baccalaureate degree. It requires schools to maintain cardiac emergency response plans beginning in the 26–27 school year and allows school districts to enter into energy performance contracts for a period not to exceed 20 years without needing voter approval. It requires school boards to develop policies for library material selection and superintendents to develop procedures for the reconsideration and retention of library materials. It allows a therapeutic approved

independent school to maintain its approval status if it changes tax status or converts to a nonprofit organization absent any other changes to the organization. This act also requires the Agency of Education to develop a model policy that prohibits students from using cell phones and non-school-issued personal electronic devices from arrival to dismissal and prohibits public schools, approved independent schools, school districts, and supervisory unions from using social media to communicate directly with students. It also allows secondary students to apply for enrollment into programs offered at CTE centers outside the student's assigned service region when the center in the student's service region does not offer the program in which they wish to enroll or they are not able to enroll in the program of their choice.

Multiple effective dates, beginning on June 27, 2025